

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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JON LOVERA,

Plaintiff

- against -

THE CITY OF NEW YORK,
POLICE OFFICER DONALD FROST
(shield # 2663) AND POLICE OFFICER
ANDREA NIEVES-SANTIAGO (SHIELD # 07534),

Defendants.
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Index No. _____

Purchased 6-11-24

Plaintiff designates New York
County as the place of trial

The basis of the venue is
where the tort arose

SUMMONS

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, NY
June 11, 2024



THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiff
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(212) 939-7251

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

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JON LOVERA

Plaintiff,

Index No.

Verified Complaint

- against -

THE CITY OF NEW YORK,
POLICE OFFICER DONALD FROST
(shield # 2663) AND POLICE OFFICER
ANDREA NIEVES-SANTIAGO (SHIELD # 07534),

Defendants.

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Plaintiff, JON LOVERA, by his attorneys THE LAW OFFICES OF ELLIOT S. KAY, by
ELLIOT S. KAY, principal, complaining of the defendants, respectfully shows to this Court and
alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff JON LOVERA was a resident of State of New York.
2. At all times hereinafter mentioned, Defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, THE NEW YORK CITY POLICE DEPARTMENT ("POLICE"), was and is an agency of Defendant CITY.
4. At all times hereinafter mentioned, Defendants POLICE OFFICER DONALD FROST (shield # 2663)("P.O.FROST") and POLICE OFFICER ANDREA NIEVES-SANTIAGO

(SHIELD # 07534)(“P.O. NIEVES-SANTIAGO”) were and still are police officers employed by Defendants.

BACKGROUND

5. On April 14, 2023, at approximately 7:30 p.m., in the vicinity of West 179th Street and Broadway in New York County, without just cause or provocation, Defendants, including P.O. FROST, approached Plaintiff and tackled Plaintiff off Plaintiff’s dirt bike—causing Plaintiff to crash to the ground and hit his head on the ground.

6. Plaintiff was handcuffed and taken to the 34th police precinct.

7. Thereafter, Plaintiff was taken to New York County Central Booking. Plaintiff was released from custody on April 15, 2023. The following day, Plaintiff went to the hospital to be treated for his injuries.

PROCEDURAL POSTURE

8. On April 24, 2023, Plaintiff served a Notice of Claim in writing sworn to on Plaintiff’s behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

9. More than thirty days have elapsed since service of said notice and defendant CITY has failed to pay or adjust this claim.

10. A 50-H hearing has been held.

11. This action has been commenced within one year and ninety days after the cause of action of Plaintiff accrued.

12. Plaintiff has duly complied with all conditions’ precedent to the commencement of this

action.

FIRST CAUSE OF ACTION: BATTERY

13. Paragraphs 1-12 are incorporated by reference as though fully set forth herein.

14. When P.O.FROST approached Plaintiff and tackled Plaintiff off Plaintiff's dirt bike, P.O. FROST subjected Plaintiff to a harmful or offensive bodily contact. P.O. FROST intended to make that contact without the consent of Plaintiff.

15. As a result of being battered by P.O. FROST, Plaintiff sustained physical injuries, including substantial pain to his face, right eye, right leg and right ankle. Plaintiff also sustained emotional injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

SECOND CAUSE OF ACTION: ASSAULT

16. Paragraphs 1-15 are incorporated by reference as though fully set forth herein.

17. P.O. FROST, acting as the agent, servant and employee of the Defendants, placed Plaintiff in apprehension of imminent harmful or offensive contact by approaching Plaintiff, tackling Plaintiff and violently handcuffing Plaintiff.

18. As a result of being assaulted by P.O. FROST, Plaintiff sustained physical injuries, including substantial pain to his face, right eye, right leg and right ankle. Plaintiff also sustained emotional injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: Bronx, NY
June 11, 2024

Yours, etc.,

THE LAW OFFICES OF ELLIOT S. KAY

A handwritten signature in dark ink, appearing to be 'E. Kay', is written over a horizontal line.

BY: ELLIOT S. KAY, ESQ.

Attorney for Plaintiff

888 Grand Concourse, Suite 1H

Bronx, NY 10451

(212) 939-7251

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Plaintiff

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Defendants
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I, **ELLIOT S. KAY**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not the Plaintiff is because Plaintiff currently resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bronx, NY
June 11, 2024



ELLIOT S. KAY